



DECISION

Complaint No. : POS/ 2955 / 2023 / DG-I /Adv.I

Name and address of the complainant : Mr. Nazar Muhammad s/o Muhammad Yaseen
R/o Flat No. 303, Al-Ramzan Bilal Corner, Block-B,
3rd Floor, Lashkari Village, Near Bilal Arcade, Garden West, Karachi.

Name of the Agency Complained against : Cooperation Department, Government of Sindh

Name & Designation of Investigating Officer : Dr. Muhammad Nawaz Shaikh, Advisor-I

Vetted by : Mr. Shahid Ahmed Hashmi, Advisor-Legal

Subject : IN ACTION OF REGISTRAR OVER NON-ISSUANCE OF ALLOTMENT OF PLOT NO. R-365 AND R-389 BY THE PAKISTAN POST OFFICE WORKERS COOPERATIVE HOUSING SOCIETY LTD SCHEME NO. 33 SECTOR A-36, KARACHI.

THE COMPLAINT

The complainant, **Mr. Nazar Muhammad**, filed a complaint dated **13.04.2023** alleging inaction on the part of the Registrar Cooperative Societies, Sindh, against the management of Pakistan Post Office Workers Cooperative Housing Society to hand over physical possession of Plots No. **365 and 389**, to him, despite lapse of several years, on one pretext or the other.

PROCEEDINGS

2. Upon issuance of notice, the Secretary of the respondent society submitted a written report contending that the present elected management bears no responsibility for the matter, as it pertains to issues of a previous period. It was asserted that the plots in question are presently in possession of allottees, and that if the complainant has any grievance with respect to his claimed plots, he may seek redress before the Special Court established under Section 117 of the Sindh Cooperative Societies Act, 2020. The Secretary further sought protection from the ongoing investigation of this office under Section 116 of the Act, 2020, claiming immunity for acts done in the discharge of duties of the society.

3. In a subsequent report, the Secretary highlighted that the affairs of the society had earlier been adjudicated by the Hon'ble High Court in C.P. No. **D-2239/2017**, relating to the appointment of an Administrator and overall management of the society. It was submitted that the Hon'ble Court had directed that the Administrator be relieved after conduct of elections, for which the Nazir of the Court was assigned responsibility. Consequently, the present management came into existence after elections and inherited the pending issues, including the matter under consideration. It was further asserted that the Hon'ble High Court had observed that any person aggrieved with the affairs of the society may avail the remedy before the Special Court as provided under the Sindh Cooperative Societies Act, 2020.

4. Hearings were held to resolve the matter, during which both parties reiterated their respective positions. The complainant argued that the core issue originated from non-handing over possession to him in view of illegal encroachment upon the society's land, which was subsequently retrieved, where after possession of plots was handed over to several allottees, excluding him. He contended that he was now being unjustly compelled to approach the Special Court despite being a legitimate owner of both the plots. The complainant further leveled allegations against the former Administrator, asserting that numerous fake files were created during his tenure, resulting in deprivation of lawful allottees, including the complainant, from their rightful plots.

FINDINGS

5. Perusal of the material available on record establishes the following sequence of events:

- i. The plot No. **365** was initially allotted to **Mr. Rashidullah in the year 1980**, who duly cleared all outstanding dues and transferred the plot to the complainant with physical possession in 1994. Whereas, the other plot No. **389** was purchased from Muhammad Yousuf s/o Gul Muhammad. Thereafter, the land of the respondent society came under occupation of illegal occupants.
- ii. Upon retrieval of the encroached land at a later stage, possession was restored to several allottees; however, the complainant was excluded on one pretext or the other, despite being repeatedly called by the society on assurances that possession would be handed over. During the relevant period, the management of the society became controversial in the conduct of its affairs, creating circumstances which led to the takeover of the society by the Registrar through appointment of an Administrator.
- iii. The Administrator was allegedly involved in the creation of bogus files and misappropriation of the society's resources. Consequently, the matter reached the Hon'ble High Court through Constitutional Petition No. **D-2239/2017**, which was adjudicated on **08.12.2021**. The Hon'ble Court directed that elections be conducted under the supervision of the Nazir of the Court and that the affairs of the society be handed over to an elected management.
- iv. Pursuant thereto, the present elected management assumed charge of the society and inherited the pending issues, including the complainant's claim. However, in the instant matter, the elected management has failed to perform its statutory obligation to examine the complainant's claim on merits and to resolve the dispute in accordance with law. The insistence of the respondent society that the complainant must directly approach the Special Court, without first invoking the statutory mechanism provided under the Sindh Cooperative Societies Act, 2020, is premature and amounts to an avoidance of statutory responsibility.
- v. Under the relevant provisions of the Sindh Cooperative Societies Act, 2020, particularly those relating to supervision, inquiry, and settlement of disputes—the Registrar Cooperative Societies, Sindh, is empowered to examine the affairs of a society, conduct inquiry, and resolve disputes between a society and its members or their legal successors. Failure of the society in deciding the complainant's claim, coupled with the inaction of the Registrar, constitutes maladministration.

DECISION

6. In view of the foregoing facts and findings, and in exercise of powers vested in me under Section 11 of Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amendment upto date), I hereby issue directions to the Registrar Sindh Cooperative Societies to:

- i. Invoke his statutory powers under the Sindh Cooperative Societies Act, 2020, including provisions relating to supervision, inquiry, and settlement of disputes;
- ii. Examine the complainant's claim regarding possession of the subject plots strictly on merits, after affording opportunity of hearing to all concerned parties;
- iii. Scrutinize the complete record of the respondent society, including allotment, transfer, possession proceedings, and relevant resolutions; and
- iv. Pass a reasoned and speaking order in accordance with law. The aforesaid exercise shall be completed within a period of 45 days from the date of receipt of this order.

Given under my hand and seal of Office.



Sd/-
(Muhammad Sohail Rajput)
Sitara-e-Imtiaz-PAS
Ombudsman Sindh
Karachi, dated **30th** January, 2026